2. I have perused in detail the judgment dated 4.8.2002 of the Hon'ble Supreme Court as also order dated 29.10.2003 of the Hon'ble High Court in Cr. Reference No. 1/2-003 and Criminal Appeals No 59 & 80/2003 and judgment of the Ld. Sessions Court order dated 18.12.2002 in Sessions Case No. 53/2002 to the extent that they concern the right to legal representation through State legal aid.
3. A review petition was filed against the said order dated 4.8.2005 and rejected. The Petitioner has raised the ground of denial of effective legal representation in all his appeals including at para 1(vi) of the review petition.
4. I am of the opinion that the Petitioner's fundamental right to a fair trial and constitutional guarantee of effective legal representation, through State legal aid, as an accused in criminal trial, guaranteed under Article 21 read with Article 22 (1) and 39-A of the Constitution of India, has been violated in the present case, vitiating the trial and the consequent conviction and resulting in gross miscarriage of justice.
5. The procedure established by law under Article 21 and 22 requires that no person be convicted and condemned to death without adequate and effective legal representation through State legal aid. The Delhi High Court has framed rules, hereinafter 'High Court Rules', under Section 304 of the CrPC, which provide that if an accused is unrepresented and cannot afford a counsel, the sessions Judge shall make arrangements to employ counsel at Government expense. A list of 10-15 counsels willing to appear for the undefended (at State expense) is to be maintained and constantly revised in each district. The advocates placed on this list should be competent criminal lawyers not merely charity seekers (see rule 4 of Vol. III, High Court Rules and Orders, Chapter 24 relating to sessions cases, Part C). Strict compliance of the said procedure established by law is mandatory to fulfil the requirement of due process. However, the record bears proof of the fact that in the present case, the session's court failed to follow this procedure. The detailed instances are raised vide the curative petition.
6. Having regard to the fact that the legal representation must be effective and adequate, especially in offences punishable by death, the state must take care to ensure that lawyers on the panel are sufficiently competent and that the scale of fee is such as is commensurate with the standing and